

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS AND THE
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2010-2238 & 2015-2034

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE
STATE OF COLORADO AND THE LICENSE TO PRACTICE AS AN PROFESSIONAL
COUNSELOR IN THE STATE OF COLORADO OF KELLY COTE (FKA KELLY
RUBENKING), REGISTRATION NO. RP 12200, AND LPC NO. (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists and the State Board of Licensed Professional Counselor Examiners (together,
"Boards") and Kelly Cote, formerly known as Kelly Rubenking ("Applicant") as follows:

1. On or about April 1, 2009, Applicant applied for registration in the database to practice as a registered psychotherapist ("RP") in the State of Colorado ("RP Application"). Applicant received her RP registration on April 30, 2010. On or about May 14, 2014, Applicant applied for a license to practice as a professional counselor ("LPC") in the State of Colorado ("LPC Application"), and her request is currently pending.
2. The Boards have jurisdiction over Applicant, her RP registration, the LPC Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of Applicant's initial applications for registration as a RP and license as a LPC in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2010-2238 and 2015-2034. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about April 1, 2009, Applicant applied for registration as a RP in the State of Colorado.
 - b. On the RP Application, Applicant answered "yes" to question 8 which states: "Have you ever received a deferred judgment or been convicted of or pled nolo

contendere to a violation of any federal, state, or local law relating to the manufacture, distribution, or dispensing of a controlled substance, or relating to drug abuse, including alcohol?”

c. On or about May 14, 2014, Applicant applied for licensure as a LPC in the State of Colorado, and her request is currently pending.

d. On the LPC Application, Applicant answered “yes” to question 6 which states: “Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

e. Applicant has admitted to a history of substance abuse.

f. On April 8, 2010, Applicant executed and is currently under a Stipulation and Final Agency Order with the RP Board in case number 2010-2238 (“2010 Order”) that includes the terms as outlined below. Applicant has not completed the terms of the 2010 Order. This Order is a continuation of the 2010 Order and is intended to also include Applicant’s LPC Application and case number 2015-2034.

5. By virtue of the facts admitted in paragraph 4 above, the Boards find that Applicant violated §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions contained in paragraphs 4 and 5 above, Applicant specifically agrees to maintain her RP registration as previously granted and to accept a LPC license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a LPC license. Applicant consents to the following limitations to her RP registration and LPC license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this LPC license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant’s registration to practice psychotherapy and license to practice professional counseling in the State of Colorado are hereby placed on probation for one (1) year commencing from the effective date of the 2010 Order, the date Applicant was approved for her RP registration, or the date Applicant’s practice monitor is approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Applicant is not practicing as a RP and LPC in this state, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a RP and LPC in Colorado and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Boards, and Applicant is responsible for establishing, to the satisfaction of the Boards, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Applicant's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Applicant shall submit, in writing, three proposed practice monitors for the Boards' approval. Applicant shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Applicant or Applicant's practice. Former employees and business associates fall under this provision.

12. Applicant must have a practice monitor approved by the Boards within two (2) months after the effective date of this Order. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until a practice monitor is approved.

13. After the Boards' written approval of the practice monitor, Applicant and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Boards as a part of his/her first report to the Boards. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Applicant's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Applicant's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she

has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Boards determine from the practice monitor's evaluation that Applicant cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Applicant shall immediately cease any part of the practice that the Boards determine, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Boards' findings and the evaluation, the Boards will determine necessary actions that Applicant must take and conditions Applicant must meet so that Applicant can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Boards find Applicant is not qualified, competent, and safe to practice. Once Applicant satisfies the Boards that she is qualified, competent, and safe to fully practice, Applicant may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once each month. Applicant and her practice monitor must review and discuss each of Applicant's active cases at least once every month in order to allow the practice monitor to be able to determine whether Applicant is practicing psychotherapy and professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. The practice monitor shall submit a written report to the Boards on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the remainder of the probationary period.

18. If at any time the Boards have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Boards' concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at a Board meeting.

19. If at any time the practice monitor believes Applicant is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Applicant. Upon submission of such a report, Applicant shall immediately cease the practice of psychotherapy and professional counseling.

20. Applicant shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards. If, in the Boards' judgment, the practice monitor fails to perform the function specified by this Order, the Boards may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Applicant shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

21. Applicant or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards not less than 60 days before the date of termination. The notice shall state the reason for the termination. Applicant shall immediately initiate efforts

to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Boards in accordance with this Order.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

22. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

TERMS AND CONDITIONS

23. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

24. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

25. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Boards.

26. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Boards of the change of address within 30 days of the effective date of such change.

27. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

28. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

29. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

31. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The

pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

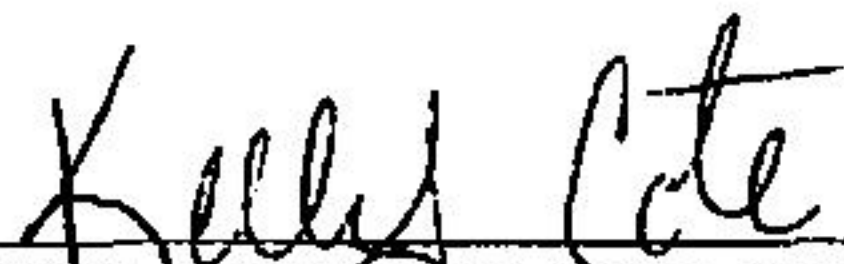
32. This Order constitutes the entire agreement between Applicant and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

33. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Boards, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Boards. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Boards.

34. This Order shall be a public record in the custody of the Boards.

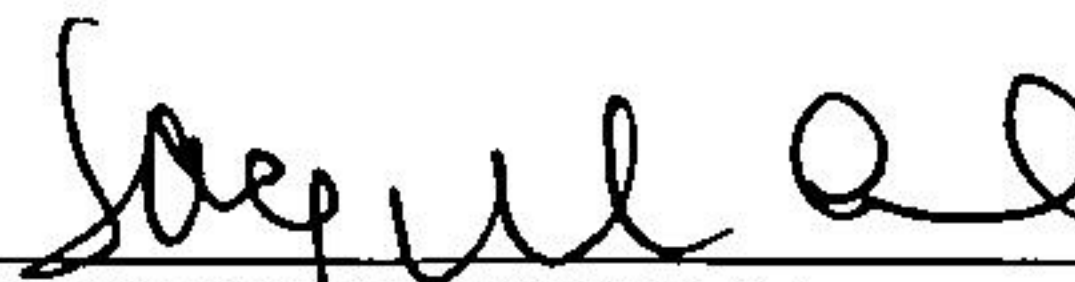
AGREED TO AND ACCEPTED BY:

APPLICANT


KELLY COTE, FKA KELLY
RUBENKING
RP NO. 12200
LPC NO. (Pending)

AGREED TO AND ORDERED BY:

BOARD OF REGISTERED
PSYCHOTHERAPISTS AND
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


JACQUILINE ARCELIN
Interim Program Director

Effective this 15th day of

July, 2015.